

C-1

District Schedule

1 INTENT AND OVERVIEW

1.1 Intent

The intent of this schedule is to provide for small-scale convenience commercial establishments, catering typically to the needs of a local neighbourhood and consisting primarily of retail sales and limited service functions, and to provide for dwelling uses designed to be compatible with commercial uses.

Without limitation, applicable Council policies and guidelines for consideration include the [C-1 Residential Guidelines](#).

1.2 Overview

The table below provides an overview of outright and conditional approval uses in the C-1 district, categorized by the minimum site area required, where applicable. Applicable density, form and placement regulations in section 3 of this schedule are cross-referenced in the third column.

Minimum Site Area	Use	Density, Form and Placement Regulations
--	All uses in section 2.1 of this schedule	3.1

2 USE REGULATIONS

2.1 Outright and Conditional Approval Uses

All outright and conditional approval uses are subject to all other provisions of this by-law, including [Section 2](#), [Section 10](#) and [Section 11](#), and compliance with the regulations of this schedule including section [2.2](#).

The uses identified in the table below as outright approval uses are permitted in this district and will be issued a permit.

The uses identified in the table below as conditional approval uses may be approved in this district by the Director of Planning or Development Permit Board, with or without conditions, if the Director of Planning or Development Permit Board considers:

- (a) the intent of this schedule and all applicable Council policies and guidelines; and
- (b) the submission of any advisory group, property owner or tenant.

Uses are listed under their general land use category. Applicable use-specific regulations in section 2.2 of this schedule are cross-referenced in the third column. Cross-references to applicable use-specific regulations are provided for information purposes only and do not form part of this by-law.

Use	Approval	Use-Specific Regulations
Agricultural Uses		
Urban Farm - Class B	Conditional	
Cultural and Recreational Uses		
Arcade	Conditional	2.2.1
Artist Studio	Conditional	2.2.1
Billiard Hall	Conditional	2.2.1
Bowling Alley	Conditional	2.2.1
Club	Conditional	2.2.1
Community Centre or Neighbourhood House	Conditional	2.2.1
Fitness Centre	Conditional	2.2.1
Library	Conditional	2.2.1
Park or Playground	Conditional	
Rink	Conditional	2.2.1
Swimming Pool	Conditional	2.2.1
Dwelling Uses		
Mixed-Use Residential Building	Conditional	2.2.2, 2.2.3, 2.2.4
Multiple Conversion Dwelling, resulting from the conversion of a building existing prior to June 18, 1956	Conditional	2.2.5
Residential Unit associated with and forming an integral part of an Artist Studio	Conditional	
Seniors Supportive or Independent Living Housing	Conditional	
Institutional Uses		
Child Day Care Facility	Conditional	2.2.1
Church	Conditional	2.2.1
Community Care or Assisted Living Facility - Class B	Conditional	2.2.1
Group Residence	Conditional	2.2.1

Use	Approval	Use-Specific Regulations
Hospital	Conditional	2.2.1
Public Authority Use	Conditional	2.2.1
School - Elementary or Secondary	Conditional	2.2.1
Social Service Centre	Conditional	2.2.1
Office Uses		
Financial Institution	Conditional	2.2.1
General Office	Outright	2.2.1, 2.2.6
Health Care Office	Conditional	2.2.1
Health Enhancement Centre	Conditional	2.2.1
Parking Uses		
Parking Uses	Conditional	
Retail Uses		
Cannabis Store	Conditional	2.2.1
Farmers' Market	Conditional	2.2.7
Gasoline Station - Full Serve	Conditional	
Gasoline Station - Split Island	Conditional	
Grocery or Drug Store, except for Small-Scale Pharmacy	Outright	2.2.1, 2.2.6
Grocery Store with Liquor Store	Conditional	2.2.1
Liquor Store	Conditional	2.2.1
Pawnshop	Conditional	2.2.1
Public Bike Share	Conditional	
Retail Store	Outright	2.2.1, 2.2.6
Secondhand Store	Conditional	2.2.1
Shared E-Scooter System	Conditional	
Small-Scale Pharmacy	Conditional	2.2.1
Service Uses		
Barber Shop or Beauty Salon	Outright	2.2.1, 2.2.6
Beauty and Wellness Centre	Outright	2.2.1, 2.2.6
Bed and Breakfast Accommodation	Conditional	2.2.1
Laundromat or Dry Cleaning Establishment	Outright	2.2.1, 2.2.6
Neighbourhood Public House	Conditional	
Photofinishing or Photography Studio	Outright	2.2.1, 2.2.6
Print Shop	Conditional	2.2.1
Repair Shop - Class B	Outright	2.2.1, 2.2.6

Use	Approval	Use-Specific Regulations
Restaurant - Class 1	Outright	2.2.6
Restaurant - Class 2	Conditional	
Short Term Rental Accommodation	Conditional	2.2.1
Utility and Communication Uses		
Public Utility	Conditional	2.2.1
Radiocommunication Station	Conditional	2.2.1
Recycling Depot	Conditional	2.2.1
uncategorized		
Accessory Buildings, customarily ancillary to any use listed in this section 2.1	Outright	2.2.1 , 2.2.8
Accessory Uses, customarily ancillary to any outright approval use listed in this section 2.1	Outright	2.2.1 , 2.2.9
Accessory Uses, customarily ancillary to any use listed in this section 2.1	Conditional	2.2.1 , 2.2.10
Any other use that is not specifically listed and defined as a use in Section 2 of this by-law	Conditional	2.2.1 , 2.2.11
Deposition or extraction of material, which alters the configuration of the land	Conditional	

2.2 Use-Specific Regulations

2.2.1 All commercial uses listed in section [2.1](#) of this schedule must be carried on wholly within a completely enclosed building, other than the following:

- (a) display of flowers, plants, fruits and vegetables;
- (b) farmers' market;
- (c) gasoline station - full serve;
- (d) gasoline station - split island;
- (e) hydrotherapy, thermal therapy, or both;
- (f) neighbourhood public house;
- (g) outdoor eating area in combination with a club, grocery or drug store, or retail store;
- (h) parking and loading facilities;
- (i) public bike share;
- (j) restaurant;

(k) shared e-scooter system; and

(l) urban farm - class B,

except that the Director of Planning may vary this regulation to permit the outdoor display of retail goods and the Director of Planning may impose any conditions that the Director of Planning considers necessary, having regard to the types of merchandise, the area and location of the display or eating area with respect to adjoining sites, the hours of operation and the intent of this schedule.

- 2.2.2 Any of the non-dwelling uses listed in section 2.1 of this schedule are permitted in a mixed-use residential building.
- 2.2.3 Mixed-use residential building may be permitted if the Director of Planning considers the design and liveability of the dwelling units.
- 2.2.4 No portion of the first storey of a mixed-use residential building, to a depth of 10.7 m from the front wall of the building and extending across its full width, may be used for residential purposes except for entrances to the residential portion.
- 2.2.5 Multiple conversion dwelling, resulting from the conversion of a building existing prior to June 18, 1956, may be permitted if:
- (a) the Director of Planning considers:
 - (i) the quality and liveability of the resulting units,
 - (ii) the suitability of the building for conversion in terms of age and size, and
 - (iii) the impact of the conversion on adjacent properties and the character of the area;
 - (b) there are no additions to the building; and
 - (c) no housekeeping or sleeping units are created.
- 2.2.6 All outright approval office, retail and service uses must cater to the day-to-day needs of residents of the local neighbourhood.
- 2.2.7 Farmers' market may be permitted if the Director of Planning considers the appropriateness of the use with respect to compatibility with nearby sites, parking, traffic, noise, hours of operation, size of facility and pedestrian amenity.
- 2.2.8 Accessory buildings customarily ancillary to any use listed in section 2.1 of this schedule are permitted as an outright approval use if:
- (a) no accessory building exceeds 3.7 m in height measured to:
 - (i) the highest point of a flat roof,
 - (ii) the deck line of a mansard roof, or

- (iii) the mean height between the eaves and the ridge of a gable, hip or gambrel roof, provided that no portion of an accessory building exceeds 4.6 m in building height;
- (b) all accessory buildings are located:
 - (i) in the rear yard, and
 - (ii) at least 3.1 m from the ultimate centre line of any rear or flanking lane; and
- (c) the total floor area of all accessory buildings, measured to the extreme outer limits of the building, does not exceed 15% of the total site area,

except that the Director of Planning may vary the maximum height, the location regulations, and the floor area regulations to a maximum total floor area not exceeding 33.3% of the gross floor area of the principal use.

- 2.2.9 Accessory uses customarily ancillary to any outright approval use listed in section 2.1 of this schedule are permitted provided that the total floor area of all accessory uses does not exceed 25% of the gross floor area of the principal use, unless permitted as an outright approval use pursuant to section 2.1 of this schedule or the accessory use is a home-based business, except that the Director of Planning may vary the floor area regulations to a total floor area not exceeding 33.3% of the gross floor area of the principal use.
- 2.2.10 Accessory uses customarily ancillary to any conditional approval use listed in section 2.1 of this schedule must comply with the provisions in section 2.2.9 above.
- 2.2.11 Any other use that is not specifically listed and defined as a use in Section 2 of this by-law may be permitted if the Director of Planning considers the use to be comparable in nature to the uses listed in this schedule, having regard to the intent of this schedule.

3 DENSITY, FORM AND PLACEMENT REGULATIONS

This section contains density, form and placement regulations organized by use.

3.1 All Uses

All uses in this district are subject to the following regulations.

3.1.1 Density and Floor Area

- 3.1.1.1 The maximum floor space ratio is 1.20, except that the floor space ratio for dwelling uses must not exceed 0.75.
- 3.1.1.2 For the purposes of section 3.1.1.1 above, where there is a residential unit associated with and forming an integral part of an artist studio, the artist studio is also considered a dwelling use.

3.1.2 Building Form and Placement

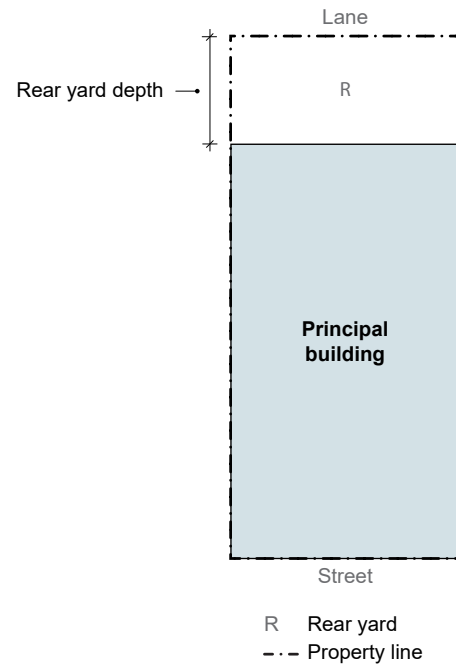
Regulations	C-1
3.1.2.1 Maximum building height	9.2 m
3.1.2.2 Minimum front yard depth for a front yard that:	
(a) adjoins the front yard of a site located in an R district, without the intervention of a lane	3.7 m
(b) does not adjoin the front yard of a site located in an R district	not required
3.1.2.3 Minimum side yard depth for a side yard that:	
(a) adjoins the side yard of a site located in an R district, without the intervention of a lane, and where the site width:	
(i) does not exceed 9.0 m	0.9 m
(ii) exceeds 9.0 m but does not exceed 15.0 m	10% of the site width
(iii) exceeds 15.0 m	1.5 m
(b) does not adjoin the side yard of a site located in an R district	not required
3.1.2.4 Minimum rear yard depth	10.7 m

Building Height

3.1.2.5 The Director of Planning or Development Permit Board may increase the maximum building height to a height not exceeding 10.7 m, if the Director of Planning or Development Permit Board considers:

- (a) the height, bulk and location of the building and its impact on the site, surrounding buildings and streets, and existing views;
- (b) the extent to which the increase in maximum building height allows for roof forms and building design that is sympathetic to buildings in the surrounding neighbourhood;
- (c) the relationship of the development with nearby residential areas; and
- (d) the intent of this schedule, all applicable Council policies and guidelines, and the submission of any advisory group, property owner or tenant.

Diagram: Building placement for principal building



Front Yard

3.1.2.6 No parking or loading of vehicles is permitted in a front yard or front setback.

3.1.2.7 The Director of Planning may decrease the minimum front yard depth to permit the outdoor display of retail goods or an outdoor eating area in combination with a restaurant, and the Director of Planning may impose any conditions that the Director of Planning considers necessary, having regard to the types of merchandise, the area and location of the display or eating area with respect to adjoining sites, the hours of operation and the intent of this schedule.

Side Yard

3.1.2.8 Despite the minimum side yard width in section [3.1.2.3\(b\)](#) above, where a side yard is provided, although not required, the minimum side yard width is 0.9 m.

3.1.2.9 For any parking area on a corner site, a setback of 1.2 m from the side property line abutting the flanking street is required.

Rear Yard

- 3.1.2.10 Despite the minimum rear yard depth in section 3.1.2.4 above, where the rear of the site abuts a lane, the required minimum rear yard depth will be decreased by the distance between the rear property line and the ultimate centre line of the lane.

4 GENERAL REGULATIONS

All uses in this district are subject to the following regulations.

4.1 Computation of Floor Area

- 4.1.1 Computation of floor area must include all floors of all buildings, including accessory buildings, both above and below ground level, measured to the extreme outer limits of the building.
- 4.1.2 Computation of floor area must exclude:
- (a) balconies and decks, and any other appurtenances that the Director of Planning considers similar to the foregoing, provided that the total area of these exclusions does not exceed 8% of the permitted floor area;
 - (b) patios and roof decks, if the Director of Planning considers the impact on privacy and overlook;
 - (c) where floors are used for off-street parking and loading, the taking on or discharging of passengers, bicycle storage, heating and mechanical equipment or uses that the Director of Planning considers similar to the foregoing, those floors or portions thereof, which are located:
 - (i) at or below the base surface, provided that the maximum exclusion for a parking space does not exceed 7.3 m in length, or
 - (ii) above the base surface and where developed as off-street parking are located in an accessory building situated in the rear yard, provided that the maximum exclusion for parking space does not exceed 7.3 m in length;
 - (d) amenity areas, including child day care facilities, recreational facilities and meeting rooms accessory to a dwelling use, to a maximum floor area of 10% of the total permitted floor area, if in the case of child day care facilities the Director of Planning is satisfied that there is a need for a child day care facility in the immediate neighbourhood; and
 - (e) all residential storage area above or below base surface, except that if the residential storage area above base surface exceeds 3.7 m² per dwelling unit, there will be no exclusion for any of the residential storage area above base surface for that unit.
- 4.1.3 The Director of Planning may permit enclosed residential balconies to be excluded in the computation of floor area, if the Director of Planning considers the intent of this schedule and all applicable Council policies and guidelines and approves the design of any balcony enclosure, except that:
- (a) the total area of all open and enclosed balcony or deck exclusions may not exceed 8% of the permitted residential floor area; and
 - (b) no more than 50% of the excluded balcony floor area may be enclosed.

4.2 Access to Natural Light

- 4.2.1 Each habitable room must have at least 1 window on an exterior wall of a building.
- 4.2.2 For the purposes of section [4.2.1](#) above, habitable room means any room except a bathroom or kitchen.